

ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
W.P. No. 71539 of 2021

Pakistan Air Traffic Controllers' Guild. Vs. Pakistan Civil Aviation Authority, etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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26.05.2022	Mian Muhammad Sharif, Advocate for the petitioner. Miss Ayesha Warsi, Advocate for respondents. Ms. Zarish Fatima, Assistant Attorney General for Pakistan.
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Through this constitution petition, Pakistan Air Traffic Controllers' Guild (**P.A.T.C.G.**) has called in question order dated 07.06.2021 whereby services of one of its members namely Ms. Rizwana Akram ATCO have been suspended for the purpose of initiating inquiry against her and has also called in question order dated 29.09.2021 whereby board of inquiry has been constituted to conduct inquiry against Ms. Rizwana Akram.

2. It is contended by learned counsel for the petitioner that allegation against which inquiry has been ordered to be conducted does not come within jurisdiction of the respondent authorities who were proceeding with the same without jurisdiction against the said member of petitioner's association, hence, proceedings against the said member were *coram non judice* without lawful authority and of no legal effect and liable to be quashed.

3. On the other hand, learned counsel on behalf of respondents has pointed out that proceedings have been initiated against afore-referred member of association by the competent authority in

accordance with law applicable to the case. Besides, service rules of Civil Aviation Authority are non-statutory, hence, constitution petition is not maintainable. Moreover, the effected party i.e. Ms. Rizwana Akram has not herself challenged afore-referred orders passed against her and association has no authority to challenge the said orders on her behalf, especially, when the concerned employee herself has not called the same in question.

4. I have gone through the record. Both the orders of suspension and holding of inquiry against Ms. Rizwana Akram had not been challenged herself by the said member of the association despite the fact that said orders were passed against her in person. Although, the petitioner association claims to be pursuing the matter for her benefit in order to protect her interest but in order to approach the Court for filing constitution petition under Article 199 of the Constitution, the aggrieved/effected party herself has to file petition in her own name and nobody else can represent the effected party in service matters, albeit subject to certain exceptions, which are not available in this case, consequently, this petition filed by the petitioner association is not maintainable in view of principles laid down in the judgments of Sindh High Court reported as “EOBI OFFICERS’ ASSOCIATION OF PAKISTAN through President and 2 others Vs. Messrs EMPLOYEES’ OLD AGE BENEFITS INSTITUTION (EOBI) through President and 2 others” (2011 PLC 336) and Messrs MUTUAL FUNDS ASSOCIATION OF PAKISTAN (MUFAP) Vs. FEDERATION OF

PAKISTAN through Secretary, Ministry of
Finance, Government of Pakistan and another
(2010 PLC 306) and is **disposed of** accordingly.

(Muzamil Akhtar Shabir)
Judge

Muzamil Mohsin*